Occupational Safety and Health Code is Old Wine in New Bottle

The Occupational Safety, Health and Working Conditions Code, 2020, brings within its fold thirteen different laws relating to workplaces/working conditions/working relationships operating in the country. It describes different workplaces as ‘establishments’ and uses a single definition to define an establishment and to which establishments it applies.

The Code prescribes that every employer of any establishment shall apply for registration with the registering officer appointed by the appropriate government. It defines an establishment to mean a place where any industry, trade, business, manufacturing or occupation is carried on in which ten or more workers are employed. The use of the expressions ‘business’, ‘occupation’ and ‘trade’, which are not defined in the Code, are wide enough to bring within its scope every workplace, whether a motor transport undertaking, newspaper establishment, audio-video production, building and other construction, plantation, factory or mine or industry that are separately defined in the Code or specifically included in the definition of ‘establishment’ and ‘shops’, warehouses, malls, logistics, railways, IT centres or data centres, which are not either specifically defined or included in the definition of an establishment.

The Code is essentially a patchwork of thirteen laws into a single one and does not really go the whole hog to use an omnibus definition to bring all workplaces within the scope of registration. This will lead to several problems in translating the vision of creating one nation with one database of businesses.

Reproducing most provisions of earlier laws does not constitute reform, or even consolidation. It is more like the creation of an umbrella scheme by reorganizing about 200 centrally sponsored schemes (CSSs) in twenty-five flagship umbrella schemes. Nothing really changes—all the CSSs continued to operate as they were, as sub-schemes.